



Your Companion Guide to the Family Managed Services Agreement

Required

Your Companion Guide to the Family Managed Services Agreement | Community and Social Services

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HOW TO USE THIS GUIDE

This guide is intended to help you, the Family Managed Services (FMS) Administrator, understand your FMS Agreement. Each section is described in detail so you are fully informed about what your Agreement states and how it applies to you.

This guide is broken down into the following steps for your easy reference:

STEP 1: Negotiating your Agreement

STEP 2: Your FMS Agreement

STEP 3: Schedule A and Invoices

Acronym Glossary:

FMS - Family Managed Services

ISP – Individual Support Plan

OCR - Online Claims Reimbursement

DSD - Disability Services Division

YOUR FAMILY MANAGED SERVICES AGREEMENT

Your family-managed services are provided through an Agreement between the Government of Alberta and yourself (FMS Administrator). Your Agreement will be signed by the Community and Social Services Minister (or someone who has authority to act on his/her behalf).

CHANGES TO THE DISABILITY SERVICES FAMILY MANAGED AGREEMENT

The Persons with Developmental Disabilities (PDD) of the Ministry of Community and Social Services provides a wide range of supports and services to adults with disabilities. You and your disability services delivery (delivery) staff will discuss short, mid and long-term planning for the individual you are supporting.

You will also discuss the term of the Agreement (up to a three year period), based on the individual's desired goals and outcomes as well as their overall needs and well-being.

It is very important that you take some time to read through your FMS Agreement and talk with your delivery staff about any questions you may have. By signing your Agreement, you accept responsibility in three main areas:

- **Planning Supports and Services:** making sure that the right supports and services are in place for the Individual you represent.
- **Being the employer of your staff or service providers:** hiring, supervising and monitoring staff in compliance with all applicable provincial rules and guidelines.
- **Record keeping and submitting claims:** making sure that all records and transactions (including receipts for services) are maintained and securely kept; and that claims for expenses made are submitted.

STEP 1: Negotiating your FMS Agreement

Your FMS Agreement provides details about the supports and services you and your delivery staff agreed would best help the Individual achieve their goals and outcomes. The Agreement outlines both the PDD program and FMS administrator responsibilities.

Your delivery staff will go through your FMS Agreement with you in detail and explain each section. Take some time to read through your FMS Agreement and talk with your delivery staff about any questions you may have before signing the Agreement. The Agreement should reflect what you and your worker had discussed during the assessment and planning process.

STEP 2: Your FMS Agreement

Your Agreement is a legal document that identifies the supports and services to be provided and outlines important information about the how the supports and services can be provided to the Individual. It's important you understand what each of the clauses mean and how they impact you and the Individual you support. Each section is described in detail below:

BACKGROUND

This section will state the name of the Individual you are supporting and the legislation that allows for this Agreement to be made.

DEFINITIONS

1. Important terms that are used within the Agreement are defined and explained in this section. You will notice they start with a capital letter whenever they are used within your Agreement. If you are uncertain about some of the terms used, refer back to this list of definitions for clarification. If you still have questions, contact your delivery staff.

TERM

2. The Agreement term identifies when your Agreement starts and when it ends. It's important to know the term of your Agreement period as you will only be reimbursed for supports and services within the Agreement effective dates. Agreement terms may range from one month to up to three years, depending on the assessed needs and circumstances of the Individual, and will end when the term expires or if either party decides to terminate it (as outlined in the Agreement). Multi-year Agreements may not be suitable for all circumstances. You and your worker will discuss the term of the Agreement during the assessment and planning process.

The delivery staff will consider the following information when making a decision about the term of an Agreement:

- The Individual's circumstances and complexity of support needs
- Familiarity and successful experience with previous family Agreements

FUNDING AND SERVICES

3. This section of the FMS Agreement outlines the commitments made by you and the Government of Alberta in regards to funding supports and services, including the total amount of funding.
4. The Government of Alberta agrees to provide the funding for services in your Agreement as long as public funds are available.
5. You agree to use the funds in the Agreement only as intended and subject to all of the terms and conditions outlined in the entire Agreement when you sign it.
6. If you do not use the funds as outlined in the Agreement, you must return the unused amount within 30 days of being informed by the Minister.
7. You must use the funding for services as outlined in your Agreement and you must provide accurate and honest information. If you provide false, misleading or inaccurate information to get funding or services, you may face civil action and/or criminal charges.
8. FMS Administrators are responsible for developing and providing a final Individual Support Plan (ISP) within three months of the Agreement start date.

INVOICING

9. FMS Administrators are encouraged to submit their invoices in a timely manner (monthly is recommended). Once the invoice has been received and approved based on services in the Agreement, payments are released within 15 calendar days of approving of the invoices.

Online Claims Reimbursement

If you prefer a quick turn around on reimbursement, you may choose to submit your invoices using the Online Claims Reimbursement (OCR) portal.

Once your invoices are submitted through OCR and your claim status shows as paid, the funds will be deposited directly into your bank account within 3-5 business days.

If you do not have direct deposit set up, a cheque will be mailed within 3-5 business days.

10. Upon request, the FMS Administrator may be approved to receive up to a maximum of two (2) advance payments at the beginning of the Agreement to support them to hire and pay staff in a timely manner. The advance payment is to primarily cover direct services. Each advance payment will be equal to one month of funding (e.g., if the Agreement runs for 12 months then the advance would be 1/12th of the direct services).
11. If you receive two (2) advance payments, you will not receive funds into your account for the last two (2) months of the Agreement as the funds will have already been paid out. It is the expectation that at the end of the Agreement the bank account will be at a zero balance if all funds were used to pay staff. If there are unused funds in the account they must be paid back to the Minister.

RECORDS AND MONITORING

12. The Agreement defines “record” as any document, information, or materials, regardless of form, which are made, generated, produced, or acquired as a result of the Agreement. This may include contact notes, time sheets, invoices, service plans, receipts, reports, or assessments. They may be kept in original form or stored electronically. As the keeper of records, you are responsible for keeping, maintaining, retaining and safeguarding this information.
 - There is a 7-year record retention policy, so be sure no records are improperly disposed of or damaged.
 - These records must be made available at any time upon request by the Minister or a delivery staff.
13. Monitoring does not only include the monitoring of records. FMS Administrators must also permit delivery staff to complete on-site visits to the premises wherever services are being provided.
14. All records in the custody or under the control of the Minister are subject to the Freedom of Information and Protection of Privacy Act (FOIP). Therefore, the FMS administrator signing the FMS Agreement acknowledges that all records submitted to the Minister are subject to the privacy and disclosure provisions of the FOIP Act. You will want to be familiar with the program policies around the collection, use and disclosure of information and related acts. Please visit humanservices.alberta.ca/department/iss-courses-and-training.html.

EMPLOYMENT MATTERS

15. You agree to directly employ staff or contract with a service provider agency to deliver the services in your Agreement. This means the Government of Alberta does not employ staff or contract with service providers to provide your services.

You will be looking for people who are qualified and able to provide the services included in your Agreement. Your service provider agency must be an approved agency. FMS Administrators choose, hire, and monitor their service providers to make sure they are working toward achieving identified goals and are fulfilling their responsibilities. The Government of Alberta is NOT the employer. FMS Administrators either “employ” or “contract” with their service providers of choice. This relationship is determined by the Canada Revenue Agency (CRA) and not you or the PDD program.

When you hire your own staff, you will also need to ensure that the laws and standards as set out in the Employment Standards Code (Alberta), the Workers' Compensation Act (Alberta) and all related regulations and CRA requirements are adhered to. Find out more information on the CRA online at www.cra-arc.gc.ca.

16. As the FMS Administrator, it is your responsibility to ensure all supports and services outlined in the Agreement are delivered in compliance with all applicable laws, codes, regulations, protocols and standards that may apply. This may include legislation such as the Occupational Health and Safety Act, Workers' Compensation Act, Financial Administration Act, and FOIP Act; Employment Standards Code; CRA legislation; and Disability Services program regulations, policies and protocols.

FMS Administrators must ensure that a separate bank account is maintained for each agreement.

Your delivery staff is a support and a resource in ensuring you have access to and a good understanding of all the information you need.

INSURANCE, INDEMNITY AND HOLD HARMLESS

17. All employers need to be aware of and protect themselves against the risk of any liability issues that may come with hiring or contracting service providers. As an FMS Administrator who is party to an FMS Agreement, you may be acting as an employer and should be aware that you are ultimately responsible for any and all third party claims, demands, actions or costs that may arise from negligent or willful acts you or your employee(s) i.e., service providers commit.
18. The Government of Alberta is unable to provide any protection in the form of insurance coverage or costs associated with any legal claim against an FMS Administrator that may arise from this Agreement. It is highly recommended that FMS Administrators contact their personal insurance provider regarding their homeowner policy and options for legal liability insurance.

TERMINATION

19. The FMS Administrator or Minister can end the Agreement at any time if both parties agree. However, if there is not mutual agreement, either party will need to provide 30 days' notice of termination in writing.
20. There will be no reimbursement for services delivered after the date of termination.

GENERAL

21. Once the Agreement is signed, any agreements or decisions made about the supports and services provided to an Individual made previous to the signing of the Agreement are no longer valid.
22. The Agreement and any of the terms within the Agreement can be changed in writing if both the FMS Administrator and Minister are in Agreement.

STEP 3: Schedule A and Invoices

All individuals receiving funded supports and services have an Outcome Plan that has been developed with their delivery staff. The approved services described in the Outcome Plan are identified in Schedule A of the FMS Agreement and are broken down into **service type**, **funding per service type**, and **total monthly funding per service type**.

FMS Administrators have flexibility in how they use the funding within a service type so they can be more responsive to the needs of the Individual or their family member. That is, the FMS Administrator may arrange for more or less supports to the Individual within a service type based on their changing and dynamic needs. The FMS Administrator may find the individual needs more or less support within any given month and has the flexibility to increase or decrease the total monthly funding for a service type as long as it is not a persistent need. If the Individual's support needs have changed, requiring a permanent change for additional or less support, the service design and planning process needs to be initiated and the PDD Outcome Plan must be updated.

Examples:

Short term - flexibility	Impact to Service Type Hours
Individual has an opportunity to complete a week long Supported Independent Living (SIL) learning opportunity and requires SIL support to attend. (ie. Community kitchen week long project)	The Individual could use SIL hours available for the month in one week; therefore, SIL support would need to be reduced the rest of the month to compensate for the week long support.

The Individual is sick and cannot access community access for three weeks.	The unused community support hours may be applied at a later time.
Long term - support needs changed	
A caregiver passes away and natural supports are no longer available to the Individual.	Service design and planning is required to determine if there is a new support need or changes to the current services outlined in the PDD Outcome Plan.
The Individual's support needs have increased and they no longer can attend the community through community access supports.	Service design and planning is required to determine if there is a new support need or changes to the current services outlined in the PDD Outcome Plan.

FMS Administrators know the individual well and are responsible for arranging for the right amount of assessed services at the right time in order to achieve the individual's identified goals and outcomes.

Delivery staff will monitor the supports and services provided to ensure that costs seem reasonable given the individual's identified outcomes and support strategies outlined in the ISP. Monthly actual expenditures must be reported on the claim/invoice.

We Welcome Your Feedback

Please tell us what you think about Your Family Managed Services Agreement Companion Guide. We welcome all comments.

Did you find the information in this guide useful? How did it help you?

Do you have any suggestions for how to improve this guide?

Would you recommend this guide to other families accessing Disability Services programs?

☐ Yes

☐ No ... please indicate why _____

Please send your comments to:

Your Local Disability Services Office

Thank you!